



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: PODS Case No. C-032264 regarding Police Officer Justin Larocchia, Tax No. 970653

Date: March 19, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Larocchia was discourteous and used offensive language towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Larocchia will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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MOHAMMAD KHALID
INTERIM CHAIR

June 20, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. PO Larocchia, Tax No. 970653
CCRB Disciplinary Case No.: (PODS No. C-32264)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with Training was agreed upon and signed by all parties on March 26, 2025. Assistant Deputy Commissioner Paul M. Gamble Sr. endorsed the negotiated settlement on June 12, 2025.

On July 5, 2023, Mr. [REDACTED] was riding on his moped and stopped to observe officers from the 52nd Precinct arresting people on the sidewalk of Davidson Avenue and West 190th Street in the Bronx. BWC footage shows that officers, including Officer Larocchia, approached Mr. [REDACTED], pulled him off his moped, handcuffed him, and walked him over to a police van. As PO Larocchia is placing Mr. [REDACTED] into the police van, he makes the following statements to Mr. [REDACTED]: "I'm not playing these fucking games," "get in the fucking van," "sit the fuck down like a goddamn adult," and "sit the fuck in the back of the van and stop being a fucking retard" – all made without police necessity since there was no imminent danger or emergent need for compliance, Mr. [REDACTED] was already cuffed and in custody.

For the charge of Discourtesy, the mitigated penalty is training, the presumptive penalty is the forfeiture of five (5) vacation days, and the aggravated penalty is the forfeiture of ten (10) vacation days.

For the charge of Offensive Language, the mitigated penalty is the forfeiture of 1 (one) vacation days, the presumptive penalty is the forfeiture of 20 (twenty) vacation days, and the aggravated penalty is termination.

The CCRB recommends training for the charge of Discourtesy to run concurrent with a recommendation of training for the Offensive Language charge. The negotiated settlement deviates very slightly from NYPD disciplinary guidelines as to the charge of Offensive Language. We believe that this downward departure is appropriate given the minor role Officer

Larocchia played in Mr. [REDACTED]'s stop/detention, only coming in to assist once the call for arrest had been made, his relative newness as a member of service, having only been an officer for 2.5 years at time of the incident, and given that he has no prior substantiated CCRB allegations. Given these factors the CCRB deems it appropriate to deviate from the Matrix and recommends the dismissal of the charge along with Training.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board